

Kurri Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 26 April 2018 · Writ-C No. 15203 of 2018 · **Installments granted; coercive recovery stayed on timely deposit.**

HEADNOTE

On a farmer's plea for time to pay a petty tubewell outstanding, the Court noted that Clause 6.14 of the U.P. Electricity Supply Code, 2005 vests installment facility in the Executive Engineer, yet itself directed deposit of Rs 10,000 within one month and the balance within six months, staying coercive steps if there was no default and leaving the licensee free to realise the dues in accordance with law on default.

FACTUAL SUMMARY

The petitioner, a farmer operating a tubewell, filed Writ-C No. 15203 of 2018 in the Allahabad High Court against the State of U.P. and electricity authorities over outstanding electricity dues. At the hearing his counsel said he was prepared to deposit the amount but, unable to muster finances immediately, sought breathing time. The Court characterised the outstanding as petty. Clause 6.14 of the U.P. Electricity Supply Code, 2005 provides for the Executive Engineer to extend an installment facility.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

court-fixed installments and stay of coercive recovery

HOLDING

Even though Clause 6.14 vests installment facility in the Executive Engineer, the Court, treating the outstanding as petty, itself directed the petitioner to deposit Rs 10,000 within one month and the balance within six months thereafter. On that deposit and in the absence of further default, coercive steps remain stayed; on default the Electricity Department may realise the dues in accordance with law. The writ petition was disposed of on those terms. ¶ 1

PRINCIPLE TAGS

installment-payment-clause-6.14 On a farmer's plea for time to pay a petty tubewell outstanding, the Court noted that Clause 6.14 of the U.P.. ¶ 1